

		The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 38) and the Complaint (ROA 2). The Court OVERRULES the Defendant's Demurrer to the Complaint. Thanh Nguyen and Hien Nguyen are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to give notice of the Court's ruling.
5	30-2026-01575255 Wheatley vs. Marchand	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 15) and Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 10) and Proof of Service by Posting (ROA 20). The Plaintiff in this matter submitted an Application to Serve Summons by Posting which was granted by this Court on 6/23/2026 (ROA 10). Registered Process Server James Voelkl Jr. (OC # 350489) signed a declaration of attempted service at the premises address on four different dates at four different times of the day prior to the Court approving service by posting. In ROA 20, Mr. Voelkl states that on 6/29/2026 at 9:25 PM he posted the signed order to post, summons, complaint, civil case cover sheet, notice that you have been sued at the premises address. Additionally, Shaunt Demirchyan (Los Angeles # 2023065327), a registered process server, mailed the same documents via certified mail to Ms. Marchand at the premises address. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Ms. Marchand states that she was not personally served and disputes that service was proper without any evidence to rebut the presumption under California Evidence Code Section 647. The Motion to Quash Service of Summons is DENIED. Defendant is ordered to file a responsive pleading within 5 calendar days. Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01562015 Bendy vs. Simpson	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 16), Memorandum of Points and Authorities (ROA 31), Declarations in Support (ROA 25, 27 & 33), Plaintiff's Request for Judicial Notice (ROA 29), Proof of Service (ROA 35), Defendants' Request for Judicial Notice (ROA 41 & 57), Defendant's Ex Parte Application to Stay Proceedings Pending Resolution of Quiet Title Action (ROA 45), Declarations in Support (ROA 39 & 43), Proof of Service (ROA 47), Opposition to Motion for Summary Judgment and Adjudication (ROA 53), Declarations in Support of Opposition (ROA 51, 55, 59 & 63) and Reply to Opposition (ROA 65). The Court GRANTS all requests for Judicial Notice.